

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, MARCH 14, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**U.S. BANK v. ESQUIVEL, ET AL.
Case No. CL23-04916**

Motion for Summary Judgment

TENTATIVE RULING

Plaintiff's unopposed motion for summary judgment is granted.

Defendant has not served or filed a separate statement disputing Plaintiff's facts or presenting any other material facts contended to be disputed, which alone justifies granting the motion. (Code Civ. Proc. § 437c(b)(3).)

Moreover, Plaintiff has presented evidence sufficient to meet its burden of proving its common counts cause of action. (Code Civ. Proc. § 437c(p)(1); *Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 853.) It is undisputed that Defendant applied for and obtained two credit cards from Plaintiff, used those credit cards to establish an outstanding combined indebtedness of \$19,043.03 for "various goods, services and cash advances", and defaulted by failing to make payments due under the terms of the agreements. (UMF 1, 3, 6.)

Consequently, the burden of establishing the existence of a triable issue of material fact shifted to Defendant. (Code Civ. Proc. § 437c(p)(1).) By neglecting to produce any evidence contesting these facts or supporting a viable affirmative defense, Defendant has failed to carry her burden. "Summary judgment must be granted when the moving

party's evidence is sufficient to sustain a judgment in its favor and the opposing party does not present evidence raising a triable issue of material fact." (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1252.)

Judgment shall be entered against Defendant and in favor of Plaintiff for \$19,043.03 and court costs of \$977.75, as set forth in Plaintiff's concurrently filed memorandum of costs, for a total of \$20,020.78.

Join ZoomGov Meeting

<https://www.zoomgov.com/j/1602210102?pwd=emlhR29SczExam56NFFqWHFvSitmZz09>

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